

Calendar Line 4 & 5

Case Name: *Vincent Marino, Jr. v. County of Santa Clara*

Case No.: 24CV453955

Before the Court is Defendant County of Santa Clara's ("Defendant" or the "County") demurrer to the First Amended Complaint ("FAC") filed by Plaintiff Vincent Marino, Jr. ("Plaintiff") and motion to strike portions contained therein.

This is an action for negligence. According to the allegations of the FAC, on January 1, 2024, Plaintiff was admitted to the Santa Clara Valley Medical Center (the "Medical Center") where he presented with persistent nausea, lightheadedness, shortness of breath, and black stool. (FAC, ¶¶ 16-17.) Plaintiff had a history of chronic kidney disease and diabetes and was found to be suffering from severe sepsis. (*Id.*, ¶ 17.) While he was admitted, Plaintiff suffered from a cerebrovascular accident due to embolism of the left vertebral artery, which resulted in oropharyngeal dysphagia, apraxia, speech and language deficits and aphasia. (*Ibid.*) He also suffered from metabolic encephalopathy and stroke, was intubated, and required a gastrostomy tube for nutrition and hydration. (*Id.*, ¶ 25.)

Defendants knew that Plaintiff was dependent upon the Medical Center for medical and custodial care. (FAC, ¶ 18.) The Medical Center's failure to provide adequate assistance caused Plaintiff to suffer significant injuries, including a Stage IV pressure ulcer, which Plaintiff was at a high risk for developing. (FAC, ¶¶ 20, 25.) Because of his condition, Plaintiff required physical assistance with bed mobility to relieve pressure on areas of the body susceptible to developing pressure wounds. (*Id.*, ¶ 25.)

Defendants failed to continually assess and monitor Plaintiff for skin breakdown or changes in health condition, failed to keep him clean and dry, failed to reposition him every two hours, and failed to provide discharge planning and instruction relative to the pressure wound. (FAC, ¶ 26.) As a result, Plaintiff developed a serious pressure ulcer to his sacrum which progressed to a Stage IV pressure ulcer. (*Id.*, ¶¶ 25, 28.)

On January 8, 2024, wound care nurse, Matthew Lee, R.N. ("Lee") was consulted for moisture associated skin damage to Plaintiff's buttocks. (FAC, ¶ 29.) Lee did not visualize the wound, as Plaintiff was being transported to the radiology department for an MRI. (*Ibid.*) A plan was implemented to care for Plaintiff's skin. (*Ibid.*)

On January 9, 2024, another wound care nurse evaluated Plaintiff and noted the wound was dark brown, there was skin loss and drainage, and Plaintiff was suffering from frequent loose stool and urine. (FAC, ¶ 30.) Despite recommendations, the Medical Center failed to reposition Plaintiff and he was left four hours soiled, which resulted in further skin breakdown. (*Id.*, ¶ 31.) Plaintiff was not seen by wound care again until February 1, 2024 and that time, the top layers of skin on Plaintiff's coccyx and buttocks had necrosed. (*Id.*, ¶ 32.)

On February 7, 2024, Dr. Kelly Higa ("Dr. Higa") evaluated Plaintiff for possible debridement of the large sacral ulcer and Dr. Higa noted that the ulcer was due to immobility and recommended wound care and collagenase treatment. (FAC, ¶ 33.) The wound was debrided on February 14, 2024. (*Ibid.*)

Between February 1, 2024 and February 20, 2024, the Medical Center staff failed to follow provider recommendations and Plaintiff was not repositioned every two hours, he spent extended periods of time on his back, and perineal care was not promptly provided resulting in Plaintiff sitting in urine and feces for extended periods of time. (FAC, ¶ 34.)

Plaintiff initiated this action on December 13, 2024, with the filing of the Complaint, asserting claims for: (1) dependent abuse/neglect pursuant to Welfare and Institutions Code §§ 15600, et. seq.; and (2) negligence/willful misconduct. The County subsequently demurred to both claims, which Plaintiff opposed. On November 13, 2025, the Court issued a tentative ruling sustaining the demurrer to the first cause of action without leave to amend and sustaining the demurrer to the second cause of action with leave to amend. Plaintiff did not contest the ruling at the hearing the following day, and therefore the Court adopted the tentative as its final ruling.

On December 3, 2025, Plaintiff filed the operative FAC. On January 20, 2026, the County filed the instant demurrer to the first cause of action on the grounds of uncertainty¹ and failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subds. (e) and (f).) The County also filed a motion to strike portions of the FAC. Plaintiff opposes both motions.

The Court previously sustained the demurrer to the first cause of action in the Complaint based on Plaintiff's failure to comply with the claims presentation requirement of the Government Claims Act. The Court concluded that the government claim submitted to the County did not mention neglect or failure to provide Plaintiff with wound care or follow a specified treatment plan. As such, the County had no notice that it might be sued for dependent abuse (i.e., violation of Welfare & Institutions Code §§ 15600 et seq.), a claim which was *distinct* from a negligence cause of action. Because this failure could not be corrected by amendment, the demurrer to the first cause of action was sustained without leave to amend.

The County's demurrer to the negligence/willful misconduct cause of action was sustained based on Plaintiff's failure to identify a statutory basis for the claim. As the Court explained in its order, all government tort liability is dependent on the existence of an authorizing statute or "enactment," and "to state a cause of action [in such a circumstance] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802 [internal citations omitted].) As such, a demurrer may be sustained where a plaintiff fails to allege a statutory basis for liability against the public entity. (See e.g., *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1179 *Lehto v. City of Oxnard* (1985) 171 Cal.App.3d 285, 292 ["litigant seeking to plead the breach of a mandatory duty must specifically allege the applicable statute or regulation"]. No statutory authority was pleaded in the Complaint and because the claim was required to be pleaded with particularity, Defendant's demurrer was sustained.

¹ The demurrer on this ground is OVERRULED.

Here, the County maintains that the FAC remains “largely unchanged” from the allegations of the Complaint, with Plaintiff’s amendments consisting of the following:

- Two references to Plaintiff’s Guardian Ad Litem (FAC, pp. 1:20-21; 4:18-19);
- A reference that Plaintiff “brings this cause of action under Government Code section 815.2(a)” without any additional facts;
- A retitling of the first cause of action to read “negligence/willful misconduct” rather than “dependent adult abuse/neglect” as was originally alleged.

Defendant argues that Plaintiff’s negligence/willful misconduct claim still fails to state a cause of action for the following reasons: (1) Plaintiff fails to identify a statutory basis for his claim; (2) as a matter of law, Plaintiff cannot state a direct liability claim against the County for alleged negligent hiring, training, supervision or retention of “unfit” employees; (3) Plaintiff fails to support his vicarious liability claim with well pleaded, particularized facts; and (4) Plaintiff’s willful misconduct claim is not supported by well-pleaded facts.

The County first argues that Plaintiff cannot save his claim “with a passing reference to Government Code section 815.2(a) (“Section 815.2”),” and cites to the Court’s order on the demurrer as “acknowledge[ing] that Plaintiff had asserted that his claim was advanced pursuant to Section 815.2(a) but found that Plaintiff’s claim was nonetheless ‘insufficient.’” But the Court’s order was not taking issue with the statutory authority cited and whether Section 815.2, subdivision (a), could provide an adequate basis for Plaintiff’s negligence claim. Instead, the problem identified was that this statute was cited in Plaintiff’s opposition to the demurrer but *not* pleaded in his actual complaint. Now that it has been, the question is whether this statute can provide an adequate basis to state a claim for negligence/willful misconduct against the County and if so, has Plaintiff adequately pleaded the claims.

Section 815.2, subdivision (a), provides: A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” Thus, this statute “expressly makes the doctrine of respondeat superior applicable to public employers.” (*Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932.) The County insists that Plaintiff has not met the required particularity standard for this claim. The Court disagrees, in part. Plaintiff specifically pleads what standard of care was required to prevent the development of pressure wounds and to assess and monitor him for skin breakdowns and changes in his conditions and how those attending to him breached or failed to meet that standard by “fail[ing] to keep [him] clean and dry, fail[ing] to turn and reposition him every two hours, and fail[ing] to provide discharge planning and instruction relative to the pressure wound.” (FAC, ¶ 26.)

However, the Court does agree with the County that Plaintiff has not alleged that the purported acts or omissions were performed by Defendant’s employees in the scope of their employment such that liability extends to the County under Section 815.2, subdivision (a). Further, Plaintiff has not identified these employees, which is required for vicarious liability to attach. (See, e.g., *Koussaya v. City of Stockton* (2020) 54 Cal.App.5th 909, 944 [for “vicarious public entity liability to attach, a public employee, either named as a defendant or at least ‘specifically identified’ by the plaintiff, must have engaged in an act or omission giving rise to that employee’s tort liability”].)

To the extent that Plaintiff's first cause of action is attempting to state a claim for negligent hiring, supervision and retention, the Court also agrees with Defendant that this claim has not been pleaded with the requisite particularity. An "employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (*Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264.) Under Section 815.2, subdivision (a), "a public entity may be held vicariously liable for the negligence of administrators or supervisors in hiring, retaining, and supervising an employee who commits a tort." (*Estate of Mendez v. City of Ceres* (E.D. Cal. 2019) 390 F.Supp.3d 1189, 1214.) No facts are alleged in the FAC that specific administrators or supervisors knew or should have known that hiring certain individuals created a particular risk or hazard and that harm of the type suffered by Plaintiff materialized as a result.

Further, as Defendant maintains, absent the existence of a special relationship between the supervisors/administrators who are responsible for the negligent hiring, supervision and retention of the employees who purportedly engaged in negligent conduct and Plaintiff, "there can be no individual liability to third parties [based on this theory of liability] and hence no vicarious liability under section 815.2." (*William S. Hart Union* (2012) 53 Cal.4th 861, 877.) No such relationship has been pleaded in the FAC.

Given these deficiencies, the County's demurrer to the first cause of action on the ground of failure to state sufficient facts is SUSTAINED WITH 10 DAYS' LEAVE TO AMEND. Consequently, the motion to strike is MOOT.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Maria Aroche Lologo v. Ford Motor Company*

Case No.: 24CV455441

Defendant Ford Motor Company's ("Ford" or "Defendant") motion for summary judgment, or alternative, summary judgment, in its favor and against Plaintiff Maria Aroche Lologo ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND & FORD'S UNDISPUTED MATERIAL FACTS

This is an action for violations of the Song-Beverly Warranty Act ("Song-Beverly" or the "Act") (Civ. Code, §§ 1790 et seq.). Plaintiff alleges that she purchased a vehicle manufactured and/or distributed by Ford (the "Vehicle") and that various defects manifested during the applicable warranty period, including but not limited to transmission defects, engine defects and electrical defects. (Complaint, ¶¶ 10, 15-19.) Based on these alleged violations, she initiated the instant action with the filing of the Complaint on December 31, 2024, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; (6) fraudulent inducement-concealment.²

According to the materials submitted by Ford in support of its motion, on November 24, 2018, Plaintiff purchased the Vehicle, a used 2017 Ford Escape with 44,433 miles on the odometer. (Defendant's Separate Statement of Undisputed Materials in Support of Motion for Summary Judgment/Adjudication ("UMF"), No. 1.) The Vehicle was originally purchased new by a prior customer on June 14, 2016, and came with Ford's New Vehicle Limited Warranty (the "Warranty"), which includes a three-year/36,000-mile Bumper-to-Bumper Warranty (whichever comes first) and a five-year/60,000-mile Powertrain Warranty (whichever comes first). (UMF Nos. 3, 4.) The Warranty began to run on the date of the original purchase. (UMF No. 5.)

The Vehicle was present for five out-of-warranty repairs- on January 14, 2020, December 9, 2021, September 20, 2022, February 5, 2024 and July 17, 2024- during which various repairs were made, including battery and BMS sensor replacements and reinstallation of fan relays. (UMF Nos. 6-10.) These issues, if covered at all, would have fallen under various provisions in the Warranty. However, the Warranty had expired at the time of these presentations for repair as the Vehicle was beyond the allowable miles of coverage. (*Id.*) The Vehicle was also presented for routine maintenance on June 16, 2020, January 19, 2021, July 16, 2021, June 20, 2022, September 15, 2022, February 3, 2023, September 1, 2023, April 12, 2024, July 17, 2024; and September 6, 2024. (UMF No. 11.)

Ford filed the instant motion for summary judgment/adjudication on April 9, 2026. No opposition has been filed by Plaintiff.

² All claims are asserted against Ford, excluding the fifth for negligent repair, which was asserted against All Star Ford. Plaintiff dismissed All Star Ford as a party in this action on May 7, 2025.